

NON-DISCLOSURE AGREEMENT

(Mutual Confidentiality Agreement)

PARTIES TO THE AGREEMENT

This Non-Disclosure Agreement (hereinafter referred to as the "Agreement") is entered into as of January 15, 2025 (the "Effective Date"), by and between:

Disclosing Party:

TechVentures Pvt. Ltd., a company incorporated under the Companies Act 2013, having its registered office at 4th Floor, Prestige Tower, MG Road, Bangalore - 560001, Karnataka, India (hereinafter referred to as the "Disclosing Party").

Receiving Party:

InnoSoft Solutions Pvt. Ltd., a company incorporated under the Companies Act 2013, having its registered office at 12th Floor, Brigade Gateway, Rajajinagar, Bangalore - 560055, Karnataka, India (hereinafter referred to as the "Receiving Party").

RECITALS

WHEREAS, the Disclosing Party intends to disclose certain confidential and proprietary information to the Receiving Party for the purpose of evaluating a potential business collaboration in the field of AI-powered enterprise software solutions (the "Purpose");

WHEREAS, the Receiving Party desires to receive such information solely for the Purpose and agrees to maintain the strict confidentiality of such information in accordance with the terms set forth herein;

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. DEFINITION OF CONFIDENTIAL INFORMATION

1.1 "Confidential Information" means any and all information or data that has or could have commercial value or other utility in the business in which the Disclosing Party is engaged. This includes, without limitation:

(a) Technical information including source code, algorithms, software architecture, database schemas, product roadmaps, technical specifications, engineering designs, prototypes, and trade secrets;

(b) Business information including financial data, revenue figures, business plans, marketing strategies, customer lists, vendor information, pricing models, and competitive analysis;

(c) Personnel information including employee data, compensation structures, hiring plans, and organizational charts;

(d) Any information marked as "Confidential", "Proprietary", or "Not for Disclosure" at the time of disclosure, whether disclosed in writing, orally, electronically, or by any other means.

1.2 Confidential Information shall not include information that: (i) is or becomes publicly available through no fault of the Receiving Party; (ii) was rightfully known to the Receiving Party prior to disclosure; (iii) is independently developed by the Receiving Party without use of Confidential Information; or (iv) is required to be disclosed by applicable law or court order.

2. OBLIGATIONS OF THE RECEIVING PARTY

2.1 The Receiving Party agrees to hold all Confidential Information in strict confidence and to take all reasonable precautions to protect such information, using at minimum the same degree of care it uses to protect its own confidential information, but in no event less than reasonable care.

2.2 The Receiving Party shall not disclose any Confidential Information to any third party without the prior written consent of the Disclosing Party, except to its employees, directors, or authorized consultants who: (a) have a need to know such information for the Purpose; (b) are bound by confidentiality obligations no less restrictive than those contained herein.

2.3 The Receiving Party shall use the Confidential Information solely for the Purpose and shall not use such information for any commercial purpose, competitive advantage, or any purpose other than the Purpose without the express prior written consent of the Disclosing Party.

2.4 The Receiving Party shall promptly notify the Disclosing Party in writing upon becoming aware of any unauthorized use or disclosure of Confidential Information and shall cooperate fully with the Disclosing Party in investigating and remedying any such breach.

3. TERM AND TERMINATION

3.1 This Agreement shall commence on the Effective Date and shall remain in full force and effect for a period of three (3) years, unless earlier terminated by either party.

3.2 Either party may terminate this Agreement by providing thirty (30) days advance written notice to the other party. Termination shall be effective upon the expiry of the thirty-day notice period. The notice must be sent via registered post or email with read receipt to the registered address of the other party as mentioned in this Agreement.

3.3 Upon termination or expiration of this Agreement, or upon written request by the Disclosing Party, the Receiving Party shall promptly: (a) return all Confidential Information and all copies thereof to the Disclosing Party; or (b) certify in writing that all such information has been permanently destroyed. The confidentiality obligations under Clause 2 shall survive termination of this Agreement for an additional period of two (2) years.

4. NON-COMPETE AND NON-SOLICITATION

4.1 During the term of this Agreement and for a period of two (2) years following its termination or expiration, the Receiving Party shall not, directly or indirectly, engage in any business activity that directly competes with the Disclosing Party's core business in AI-powered enterprise software solutions within the territory of India.

4.2 For the duration of this Agreement and for a period of one (1) year thereafter, neither party shall solicit, recruit, or hire any employee, officer, or consultant of the other party who was involved in the activities covered by this Agreement, without the prior written consent of the other party.

4.3 The parties acknowledge that the restrictions in Clauses 4.1 and 4.2 are reasonable and necessary to protect the legitimate business interests of the Disclosing Party. In the event any restriction is found to be unenforceable, it shall be modified to the minimum extent necessary to make it enforceable.

5. INTELLECTUAL PROPERTY RIGHTS

5.1 Nothing in this Agreement shall be construed as granting any rights, licenses, or interests in any intellectual property of the Disclosing Party, including but not limited to patents, trademarks, copyrights, or trade secrets, except as expressly stated herein.

5.2 All Confidential Information disclosed under this Agreement shall remain the exclusive property of the Disclosing Party. The Receiving Party shall acquire no rights whatsoever in such information by virtue of this Agreement or its disclosure.

5.3 Any intellectual property created jointly by both parties during the course of collaboration shall be jointly owned, and the terms of such joint ownership shall be governed by a separate written agreement to be executed by both parties.

6. INDEMNIFICATION AND LIABILITY

6.1 The Receiving Party shall indemnify, defend, and hold harmless the Disclosing Party and its officers, directors, employees, and agents from and against any and all claims, damages, losses, costs, and expenses (including reasonable legal fees) arising out of or resulting from any breach of this Agreement by the Receiving Party.

6.2 In no event shall either party be liable for any indirect, incidental, consequential, special, or punitive damages arising out of or in connection with this Agreement, even if advised of the possibility of such damages. The total aggregate liability of either party under this Agreement shall not exceed INR 10,00,000 (Indian Rupees Ten Lakhs).

6.3 The Disclosing Party makes no representations or warranties, express or implied, regarding the accuracy, completeness, or fitness for purpose of any Confidential Information disclosed hereunder. The Receiving Party relies on such information at its own risk.

7. GOVERNING LAW AND DISPUTE RESOLUTION

7.1 This Agreement shall be governed by and construed in accordance with the laws of India, without regard to its conflict of law provisions.

7.2 Any dispute, controversy, or claim arising out of or relating to this Agreement, or the breach, termination, or invalidity thereof, shall first be attempted to be resolved through good-faith negotiations between the authorized representatives of both parties for a period of thirty (30) days from the date of written notice of dispute.

7.3 If the dispute cannot be resolved through negotiation, it shall be submitted to binding arbitration in accordance with the Arbitration and Conciliation Act, 1996 of India. The arbitration shall be conducted in Bangalore, Karnataka, and the language of arbitration shall be English. The award of the arbitrator shall be final and binding on both parties.

7.4 Subject to Clause 7.3, both parties submit to the exclusive jurisdiction of the courts of Bangalore, Karnataka, India for any matters not subject to arbitration.

8. GENERAL PROVISIONS

8.1 Entire Agreement: This Agreement constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous agreements, understandings, negotiations, and discussions, whether oral or written.

8.2 Amendments: No amendment, modification, or waiver of any provision of this Agreement shall be effective unless made in writing and duly signed by authorized representatives of both parties.

8.3 Severability: If any provision of this Agreement is found to be invalid, illegal, or unenforceable, the remaining provisions shall continue in full force and effect.

8.4 No Waiver: The failure of either party to enforce any right or provision of this Agreement shall not constitute a waiver of such right or provision.

8.5 Notices: All notices required or permitted under this Agreement shall be in writing and shall be delivered by hand, registered post, or email with read receipt to the addresses

specified at the beginning of this Agreement.

8.6 Counterparts: This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument.

8.7 Force Majeure: Neither party shall be liable for any delay or failure to perform its obligations under this Agreement due to circumstances beyond its reasonable control, including but not limited to acts of God, natural disasters, pandemics, war, or government restrictions.

SIGNATURES

IN WITNESS WHEREOF, the parties have executed this Non-Disclosure Agreement as of the Effective Date first written above.

For TechVentures Pvt. Ltd.:

Signature: _____

Name: Arjun Sharma

Designation: Chief Executive Officer

Date: January 15, 2025

For InnoSoft Solutions Pvt. Ltd.:

Signature: _____

Name: Priya Mehta

Designation: Chief Technology Officer

Date: January 15, 2025